



File No.: EXP202306263

RESOLUTION FOR FILING OF PROCEEDINGS

From the proceedings conducted by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 12/03/2021, a document was received by this Agency presented by the City Council of Barcelona, informing that the actions of TUCYCLE BIKE SHARING, S.L., with NIF B52553385 (hereinafter TUCYCLE), may lead to a breach of the provisions of personal data protection regulations. The reasons for the complaint are as follows:

"1.- Background...

Among others, a total of 1,392 temporary licenses for special common use of public domain for the parking of mopeds and motorcycles for shared use were awarded in the municipality of Barcelona among the four operators (Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL)...

7. The four companies Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL, also participated in the procedure for the precarious granting of temporary licenses and consequently submitted responsible declarations in which they confirmed their status as independent companies, and committed and accepted to comply with the conditions and obligations of the call. Through this procedure, a total of 854 temporary licenses for special common use of public domain were awarded to the four operators. Thus, the four operators are the recipients of a total of 2,246 temporary licenses for special common use of public domain for the parking of mopeds and motorcycles for shared use in an economic exploitation regime in the municipality of Barcelona...

9. By virtue of the above, to operate in public space, each company has a mobile application for users to register and use the bicycle and motorcycle rental service, which are parked in the public space of Barcelona. In these mobile applications, breaches have been detected by the four companies, since when a person registers in one of the applications of the four companies, the application recognizes the user and shares the data among the four companies, without the user having registered in the other applications of the companies or having consented (this point is detailed further below). Additionally, we must add another company, REBY RIDES S.L, which is not a licensee, but which in the inspection reports dated December 1, 2020, and the report from the Mobility and Infrastructure Management dated December 29, 2020, which is mentioned later, demonstrates that it apparently also facilitates the rental of motorcycles from the four previous companies in its mobile application, and consequently facilitates the data of users registered in the previous applications, without prior consent from the users.

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10. On August 27, 2020, and September 14, 2020, (name of a third entity) (definitive license awardee) sent emails to the corporation notifying that it had detected certain practices carried out by the four definitive license awardees that could constitute a violation of data protection regulations in relation to the regulatory decree and the call for applications decree.

11. For this reason, the City Council of Barcelona conducted its own verifications on August 19, 2020, and an inspection report was issued documenting the detected non-compliances (...).

12. Likewise, on October 6, 2020, this Directorate received a letter from the company (name of a different third entity), license awardee, stating that certain practices carried out by the four operators and definitive license awardees (Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL) could constitute a violation of competition regulations as well as data protection regulations (...).

13. In light of the above, the Mobility and Infrastructure Management again conducted its verifications, and on October 26, 2020, municipal officials personally and directly verified the aforementioned actions carried out by Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL, and consequently, four inspection reports were issued, which are attached as ANNEXES 4, 5, 6, and 7 respectively, highlighting certain actions that could constitute an infringement of data protection regulations, which are detailed below. An inspection report issued on December 1, 2020, is attached as ANNEX 8, demonstrating that apparently, REBY RIDES, a company that does not hold licenses nor has participated in the procedure, also facilitates the rental of motorcycles from the four previous companies in its mobile application, and consequently provides the data of registered users in the previous applications, without prior consent from the users...

IV.- Subject of the complaint...

In the inspections carried out on October 26, 2020, it was verified that when a user registers on the Iberscot application, they are automatically registered on the applications of Oiz, Tucycle, and Avant, as indicated in the same application, without requiring the necessary documentation again to register the new user, with the following message that appears in the screenshots of the Reports: "You are already registered! We have detected that you have already registered on another collaborating platform. We will use the data you have added to expedite the process"...

In the inspections carried out on October 26, 2020, it was verified that by entering €10 in the Avant application, which is added to the previous €0.22 in the account, and making a trip with this same application, the balance is reduced by €0.66, going from €10.22 to €9.56. (...)

It is noted that the balance, once the €10 is entered into the Avant application wallet, in the case of the OIZ company wallet, an additional €1 gift is added to the account as indicated by the promotion of the application itself (highlighted in green in the screenshot). At the same time, it is verified that having made only one trip with the Avant company with a charge of €0.66, the accounts of the other three companies are also reduced by €0.66 (see Annexes 4, 5, 6, and 7). It is verified that with the other three companies, Oiz, Tucycles, and Iberscot, no trips have been made. Nevertheless, the wallet balance has also decreased (...).

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3. In the privacy policy of the companies, users are informed that personal data is shared with entities of the same group...

Likewise, regarding the Inspection Report dated December 1, 2020, related to the external company REBY RIDES, S.L., it is verified that:

That the companies Avant, Oiz, Tucycle, and Iberscot share the databases of records and users with a fifth company: REBY RIDES SL (an external company that has not been awarded licenses)..."

Along with the complaint, the following documentation is provided, among others:

. Copy of the Inspection Act issued by the City Council of Barcelona, which records the verifications carried out on August 19 and 26, 2020, October 26, 2020, and December 1, 2020, in relation to the following entities: Tucycle Bikesharing, S.L., Avant Fullstep, S.L., Eco-logica Turismo Sostenible, S.L., Oiz Ridesharing, S.L., and Reby Rides, S.L.

. Copy of the technical report, dated January 29, 2021, issued by the Mobility and Infrastructure Management, in which it requests to inform the competent authorities in data protection matters of the analysis included in its report and in the acts, so that the corresponding investigations can be initiated, and in case a violation of the regulations by Avant Fullstep SL (Avant), Oiz Ridesharing SL (Oiz), Tucycle Bikesharing SL (Tucycle), and Eco-logica Turismo Sostenible SL (Iberscot) is confirmed, it requests the initiation of the corresponding revocation file of licenses and the adoption of the necessary sanctions or measures.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), on April 19, 2021, said complaint was forwarded to TUCYCLE, so that it could proceed with its analysis and inform this

Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on April 19, 2021, as evidenced by the acknowledgment of receipt in the file.

On May 19, 2021, a response letter was received in this Agency in which TUCYCLE states:

“That in December 2020, Tucycle was requested to provide information regarding the processing of user data, through resolution with reference number E/10004/2020... After analyzing the information provided by Tucycle, the AEPD archived the proceedings considering that no violation of the regulations had occurred...

A. Regarding the user registration process...

After the first request, mentioned above, Tucycle explained that consent from users is always obtained to complete the registration process on its platform and also for obtaining their data on another mobility platform.

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Collaborative, so that user registration is simpler. As we have mentioned, in the corresponding resolution, the Agency already assessed the clarifications made by Tucycle and archived the claim in question; therefore, to avoid unnecessary reiterations, we refer to the response submitted to the agency on January 21, 2021.

Tucycle, in order to improve the service to its users and reach the largest number of potential users, is interested in offering the availability of its vehicles on more mobility platforms... it is already present among them in the SMOU app, offered by the municipal company of Barcelona De Servicios Municipales, SA (B:SM), as well as in the Reby application.

Reby Rides, S.L. (hereinafter, “Reby”) provides independent aggregator services for the geolocation and visualization of temporary shared rental vehicles from third-party operators, as well as price comparison and vehicle reservation, through the Reby Platform and Mobile Application....

After analyzing the user registration process of Tucycle, it is reiterated that Tucycle communicates data of its users to other mobility service providers, solely and exclusively at the request of the interested parties, who must request and expressly approve it with active behavior (pressing a button) in the mobile application, without, in any case, transmitting personal data without their express authorization.

Similarly, Tucycle only receives communications of data from new users of its service coming from other mobility service providers, such as Reby, solely and exclusively at the request of the interested parties, under the same circumstances explained. Users are expressly informed in the Privacy Policy, in the section on obtaining personal data, that Tucycle already contemplates that in the event of receiving data from third-party collaborating companies, such as Reby, the authorization of the interested party is necessary...

For all these reasons, Tucycle considers that it rigorously complies with the obligations imposed by the GDPR and the LOPDGDD on data controllers... especially after the proactive modifications made during the current year 2021...

B. Regarding the payment system for users...

User payments are securely managed through the entity Kernel Labs, S.L.U... which acts as the data processor.

Payment data is processed solely and exclusively by the provider for the purpose for which their services have been contracted...

The user registration process and storage of their banking data is explained below.

- The user enters their banking data from the Tucycle application, where the data is not stored.
- The data provided by the user is transferred directly to Kernel, which is responsible for carrying out the necessary checks with the bank. Kernel is the one who verifies that the entered bank card is valid

and correct.

- Once the information is verified, Kernel provides Tucycle with a "payment token" for the card or digital card. This Card Token replaces the sensitive data of the cards with a unique identifying code.
- When the trip is completed, Tucycle automatically charges the fee.

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corresponding to the service, through the payment method provided by the user.

- Under no circumstances does Tucycle have access to the complete card details of the user, but rather to the "payment token" provided by Kernel. The data provided by Kernel is insufficient to make direct charges to the card. Only Kernel has the means and is authorized to do so...

In cases where Tucycle communicates user data to a collaborating shared mobility operator, after the user has expressly given their consent through active behavior, among such data is the user's "payment token," that is, access to the numerical code or "wallet" in which the credit entered by the user personally is stored.

The communication of such data by Tucycle to another collaborating shared mobility operator, and in particular the communication of the payment token, allows them to know if there is a balance available on the user's digital card, and to make charges through the Kernel platform on that payment method for the services they provide...

E. Conclusion on the decision made

...once Tucycle has received the Claim referred to in this document... it has conducted a review of the legal texts, particularly the privacy policy, included both in the mobile application and on the Tucycle website..."

Along with the document, it provides, among others, the following documentation:

. Copy of the Privacy Policy in its version of 05/19/2021. From the content of this document, the following is noteworthy:

"Where do we obtain your personal data?

"(...)

I. Personal data that we process that comes from the User themselves...

II. Personal data that we process through the App when the User uses the Service...

III. Personal data that we process that comes from third-party collaborating companies. When creating your User account, we will ask for your permission to verify if you are already registered on other collaborating mobility platforms. The data communicated to us in order to provide you with our services are as follows:

Identification data (name, surname, ID card or passport);

Email address;

Driver's license;

Payment token. The token is a unique numerical code made up of similar digits that replaces the credit card data during the transaction. Therefore, your card details will not be transmitted, only this secure code.

In this way, your registration process in our App will be much more agile, as you will not have to manually re-enter all the data. TUCYCLE will only have access to the data you have provided to our collaborators if you give us your prior authorization. Under no circumstances will that data be matched without your consent. The collaborating mobility platforms of TUCYCLE in the city of Barcelona can be consulted here."

"Do we share your personal data with third parties?

...certain personal data that has been provided to TUCYCLE may be transferred to third parties, to enable, facilitate, and improve our services...

The personal data of the User may be transferred to the following recipients:

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- . Entities of the TUCYCLE Group...
- . Public Administrations, Courts, and Tribunals...
- . Suppliers providing services to TUCYCLE...
- . Payment entities...
- . Traffic authorities...

. Collaborative mobility entities of TUCYCLE: when you enter your personal data on the TUCYCLE App platform, you will be asked to authorize the transfer of such data to third-party collaborating companies with which we share the platform. The sole purpose of this transfer is to expedite the registration process in their respective applications in case you wish to register and use them in the future. This transfer will only occur with the prior and express consent of the user. The collaborating companies of TUCYCLE are those indicated in section 3 of this Privacy Policy."

. Copy of the Resolution issued by this Agency, dated 25/02/2021, which agrees to proceed with the filing of actions marked with the number E/10004/2020.

The resolution referred to by the aforementioned entity resolves a complaint filed against the entities TUCYCLE, AVANT, OIZ, and IBERSCOT regarding the transfer of personal data of users who register in the corresponding mobile "apps" to access the vehicle rental service. This complaint warns that when a person registers in one of the "apps" of these entities and subsequently installs another one, the second recognizes the user and reuses the data provided by the other "collaborating platform," with the aim of "expediting the process." It is added that none of these entities informs the user of the possibility of sharing personal data with third companies other than service providers or group companies.

This complaint was also forwarded to TUCYCLE, in accordance with the provisions of Article 65.4 of the LOPDGDD, for them to analyze it and inform about the actions taken to comply with the requirements set forth in data protection regulations.

According to the aforementioned resolution of the filing of actions, in its response to the transfer procedure, dated 21/01/2021, TUCYCLE informed that it had undertaken modifications to its privacy policies to inform about the transfer of users' data to third-party collaborating companies with which they share the platform, with the sole aim of expediting the registration process in their respective applications in case a user wishes to register and use them in the future, emphasizing that this transfer will only occur with the prior and express consent of the user. Likewise, in the section on obtaining personal data, they contemplate the case of receiving them from third-party collaborating companies, always with the authorization of the interested party. It is indicated that the extracted data includes identification data (name, surname, ID number or passport); email address; driver's license; and payment token.

Similarly, it was reported that they were in the process of incorporating a mechanism in the user registration process in their mobile application to collect consent for obtaining their data from other collaborative mobility platforms, with the purpose of facilitating the registration process.

Once the reasons presented were analyzed, it was considered that the initiation of

an administrative sanctioning procedure, since the processing of the complaint in accordance with the provisions of Article 65.4 of the LOPDGDD resulted in the resolution of the issues raised, without the need to clarify administrative responsibilities within the framework of a sanctioning procedure.

This is without prejudice to the fact that the Agency, applying the investigative and corrective powers it holds, may carry out subsequent actions related to the data processing referred to in the complaint, as was well noted in the aforementioned resolution of 25/02/2021.

THIRD: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Data Protection Agency on 26/05/2021. The complaint is directed against the entity TUCYCLE, regarding the communication of user data between different companies providing bikesharing services, for failing to inform its users of such communications and not obtaining their consent. The following is stated in the complaint:

The complainant registered as a user of OIZ in October 2020, providing her personal data, a photograph of her ID card, driver's license, a selfie, and banking information.

After the registration process, she accepted the privacy policy, which states the following:

“The personal data of the user may be transferred to the following recipients: Entities of the OIZ Group or that may become members of the group in the future (understood as a group of companies in accordance with the provisions of Article 42 of the Commercial Code), or to any third party that acquires all or a substantial part of the assets of OIZ, primarily for management and administration purposes of the Group.”

For this reason, she contacted Customer Service, which informed her about the transfer of her personal data to the entities Ecológica Turismo Sostenible, S.L. (IBERSCOT), Avant Fullstep, S.L. (AVANT), Reby Rides, S.L. (REBY), and TUCYCLE.

She adds that she accessed the privacy policies of all the indicated entities, verifying that none informed about the recipients of the communication of personal data; that currently, OIZ, AVANT, and REBY still do not indicate to whom they transfer the data, while TUCYCLE and IBERSCOT do indicate it; and that she did not receive information from OIZ regarding the modification of the app and its privacy policy.

She warns that the new configuration of the app, at the beginning of the registration process, requests the user's consent for the transfer of their personal data to collaborating companies, but without indicating the recipients and without allowing the completion of the registration process in case of not granting such consent.

In relation to this issue, she provides two screenshots from the Apps of IBERSCOT and OIZ, both with the same structure and information. In this screen, the user is required to provide a telephone line number and two boxes are offered to mark both options with the following text:

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“Continuing, I confirm that I am 18 years old or older and that I accept that... (name of the entity: OIZ or IBERSCOT), in its capacity as the data controller

() Processes my data for the provision of the contracted service according to the Terms and Conditions and Privacy Policy that I have read and accept”

() I consent that... (name of the entity: OIZ or IBERSCOT) checks if I am already registered on other collaborative mobility platforms to facilitate the registration process.”

The claiming party states that they completed the registration process in the IBERSCOT app, similar to that of OIZ, with the same sequence of screens, requested data, notices, etc. After checking the necessary checkbox to continue, they received the following message:

“After checking, we have detected that you are already registered in OIZ. You accept that this one communicates to Iberscot the following data to expedite the registration process, in order to provide you with our services: name, surname, email, ID/Driver's License/Passport, payment token.”

They provide a screenshot containing the above text and two buttons: one with the text “re-register” and another with the text “understood.”

The claiming party considers that the information must have already been shared, at least partially, for IBERSCOT to know that they were previously registered in OIZ.

They indicate that they tried to deny the permission by pressing the “re-register” button and verify that they cannot enter the data without authorizing the sharing, that by opting for “re-register” the App takes them back to the home screen, where the same process begins, the same SMS verification, and the same screen. Without pressing the “Understood” option, they cannot continue the process.

What has been stated is the same in the case of OIZ, IBERSCOT, AVANT, and TUCYCLE (they provide a screenshot with the options previously mentioned for accepting the Terms and Conditions and the Privacy Policy, and for accepting the verification of prior registration on other platforms), being somewhat different in the case of REBY.

Upon entering IBERSCOT, they verify that all their data is already uploaded (they provide a screenshot with the data related to name, surname, email, phone number, address, and bank card).

Subsequently, they added balance in IBERSCOT to start using it, and this balance was also updated in the OIZ app and the other indicated companies (they provide a screenshot with the balance update in OIZ).

With their claim, they provide the following documentation:

a) Copy of the conversations held with the Customer Service of OIZ regarding the inquiry made by the claiming party on 02/10/2021 to inform them to which entities they transfer their personal data. From the responses provided by OIZ, we highlight the following:

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“... We are several companies that work together, provide the same service, and collaborate with each other for the benefit of the client. In the event that client information is shared from one company to another, authorization and consent will always be requested to do so... Data is never transferred to any company that the user has not given their consent to...”

“The companies are as follows: Reby, OIZ, Iberscot, Tucycle, and Avant”.

“This is a collaboration to offer a more convenient service; so that if you download the app of any of these companies, you no longer need to validate your information with each of them”.

b) Excerpt from the privacy policy available on the TUCYCLE websites, although it does not refer to the communication of personal data to third parties.

FOURTH: On 06/18/2021, the General Subdirectorate for Data Inspection accessed the Privacy Policy of TUCYCLE, available at the web address <https://tucycle.com/politica-de-privacidad>. The content of this document matches that outlined in Background Second.

On the same date of 06/18/2021, it was also verified that at the URL

<https://tucycle.com/plataformas-de-movilidad-colaboradoras-en-la-ciudad-de-barcelona/> the “collaborative mobility platforms in the city of Barcelona” are listed: AVANT, IBERSCOT, OIZ, REBY, and TUCYCLE.

FIFTH: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to TUCYCLE for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 07/22/2021 as noted in the acknowledgment of receipt in the file.

On 08/20/2021, a written response from TUCYCLE was received by this Agency, in which, after indicating that the complaint was submitted by competitors who did not directly address TUCYCLE to resolve the issues, the following information was provided:

. TUCYCLE is a shared mobility company that offers motorcycle and bicycle rental services through a mobile application at various locations in Spain, including the city of Barcelona with a license from the City Council of this city. To provide the service, it uses various platforms that allow the user to contract the services, among which is the entity REBY, which offers TUCYCLE an aggregation service through its mobile app.

. The complaint does not provide evidence regarding the registration process in the company's app, and the complaint itself admits that TUCYCLE informs about the entities to C/ Jorge Juan, 6

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the entities to which the data is communicated.

On 19/05/2021, it updated its Privacy Policy, which is accessible in its mobile application and on the website (provides the document). Regarding the transfer of personal data to "collaborative mobility entities of TUCYCLE," it highlights the text already noted in Background Second.

Regarding the registration process to use the motosharing service, it states:

TUCYCLE may carry out a transfer of the personal data entered by the user as long as the user has given prior consent.

The data is transferred to collaborating companies of TUCYCLE, which are not companies of a group in the sense of Article 42 of the Commercial Code.

The sole purpose of this transfer is to expedite the registration process in the respective applications of the collaborating entities, in case the user wishes to register and use them in the future.

As stated in the Privacy Policy, information is not shared by default with potential recipients, but only when explicit consent from the user has been obtained during the registration process in the TUCYCLE app and/or during registration in the app of another collaborating entity, which can be consulted on the website.

In the same written response to the transfer procedure, TUCYCLE again warns that it has already been subject to other similar previous actions, noted with the number E/10004/2020, in which the filing of the respective complaint was agreed upon, once compliance by TUCYCLE with personal data protection regulations was verified.

SIXTH: On 06/10/2021, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

SEVENTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

a) On 22/02/2022, it was verified that on the website https://ajuntament.barcelona.cat/gracia/es/noticia/adjudicacion-definitiva-de-las-licencias-de-motos-y-bicis-de-uso-compartido_951038, TUCYCLE, AVANT, IBERSCOT, and OIZ are listed as operators of the motorcycle service. This information is dated 19/05/2020 and corresponds to the definitive award of licenses for shared motorcycle use (348 vehicles for each of the entities).

b) On 22/03/2022, the AEPD received the response prepared by TUCYCLE to the information request made by the Inspection Services:

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. It indicates that the cited entities do not form part of its business group and warns that the references in the Privacy Policy to the communication of personal data to the Group companies were included as a precaution, but user data is not currently shared with them.

. It provides a copy of the Record of Processing Activities (RAT) dated August 2020 and updated in August 2021.

In the August 2020 version, regarding the details related to the processing that TUCYCLE carries out for the management, provision, and billing of the service, the categories of recipients to whom the data is communicated are indicated:

"Third-party mobility companies that provide their services jointly; City Council of Barcelona; public administrations, courts, and tribunals; entities of the Tucycle group; providers of administrative, accounting, tax, IT, and marketing services; payment entities; traffic authorities."

In the August 2021 version, regarding the same processing and data communications, it is indicated:

"City Council of Barcelona; public administrations, courts, and tribunals; entities of the Tucycle group;

providers of administrative, accounting, tax, IT, and marketing services; payment entities; traffic authorities.”

. The Inspection Services requested TUCYCLE to carry out various tests on the current version of its mobile application, on the version that was in production on 08/19/2020, and on the one they planned to implement.

TUCYCLE clarifies that it cannot carry out any tests on past versions of the application due to technical impossibility, as the infrastructure has changed and due to the technology on which these applications are based.

Regarding the current application, it informs that, following the requests from the AEPD and the modifications made to simplify processes, it does not check whether a user has registered with collaborating mobility entities such as AVANT, IBERSCOT, or OIZ, that there is no data transfer between these entities, and that there is only a relationship with REBY, which acts as the data processor for TUCYCLE and provides the service from the REBY application itself.

Additionally, regarding the balance service of the application, it indicates that it has been integrated with a new provider.

In the test conducted for registering a new user, after filling in the data, consent for the communication of data to other entities is not required.

In this regard, it provides screenshots of the application. In the first screen of the registration process, where the phone number is entered, there is a single box to check (unchecked by default) with the following text:

“Process my data for the provision of the contracted service according to the Terms and Conditions and

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"Privacy Policy that I have read and accept."

Furthermore, TUCYCLE was required to provide the details recorded in its information systems regarding consents granted and not granted by real users between 08/19/2020 and the present.

TUCYCLE reported that as of 08/16/2021, data communications from the TUCYCLE application to other collaborating applications ceased, so the consents obtained are prior to that date, and that currently the only consents recorded are those coming from the aggregation service offered by the company REBY.

In the same way, TUCYCLE only receives personal data from the aggregation service offered by the company REBY and only from those users who have expressly accepted that REBY transmits their personal data. According to TUCYCLE, one of the fields in its systems indicates whether those consents were granted to another mobility collaborator.

In the random sample of consents provided to the proceedings by TUCYCLE, associated with 200 users, the majority are obtained through the REBY app, with others coming from other entities

"obtained prior to the decision not to share personal data among mobility operators," according to the explanation provided by TUCYCLE.

In this sample from the database, there is a descriptive field of consent ("consent_from"), which only takes the following values:

"consent-from-reby-app" means consents obtained through the REBY app.

"consent-from-co-app" means consents obtained prior to the decision not to share personal data among mobility operators.

"other" means that they are users who, being solely users of TUCYCLE, have not had to provide their consent.

At the time of user registration, no checks are carried out to determine if the user is registered on other platforms. "The situation in which a check can indeed be carried out is by REBY, as the data processor. In the event that a user wishes to use the mobility aggregation service with a TUCYCLE vehicle, it will inform them that TUCYCLE will have access to the data provided if they accept. The

data is updated directly in TUCYCLE's database, not in another database. In these cases, the data is archived directly in TUCYCLE's database; for this reason, in the records of new users, TUCYCLE only checks the records of its own database and can detect if a user with that phone number already exists; in no case does it consult other platforms."

TUCYCLE provided copies of the different versions of its Privacy Policy, dated 08/01/2020, 01/19/2021, 05/19/2021, and 03/22/2022.

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The version dated 01/08/2020 includes the following section regarding the communication of personal data:

"Do we share your personal data with third parties?

Yes. We share your Personal Data (i) with other entities of the TUCYCLE group, (ii) with external providers who assist us with various issues related to the Service, and (iii) with authorities or public bodies...

- Entities that assist us with various issues related to the Service...
- Authorities or public bodies for the performance of their functions...
- Payment entities..."

The sections corresponding to the origin of personal data and the communication of data to third parties in the versions dated 19/01/2021 and 19/05/2021 coincide with the information outlined in Background Second. These sections are modified in the version dated 22/03/2022, as follows:

"3. Where do we obtain your Personal Data?

(...)

I. Personal data that we process that comes from the User themselves...

II. Personal data that we process through the App when the User makes use of the Service...

III. Personal data from the aggregation service. If you are a user of the mobility aggregation service provided by Reby Rides S.L., at the moment you wish to drive a TUCYCLE vehicle, you will be informed that for the execution of the trip your data will be shared between Reby and TUCYCLE, by virtue of the relationship we maintain, with Reby Rides, S.L. being our data processor. The sharing of this data is necessary to provide you with our services:

Identification data (name, surname, ID card or passport);

Email address;

Driver's license;

Payment token. The token is a unique numerical code made up of similar digits that replaces the credit card data during the transaction. Therefore, your card data will not be transmitted, only this secure code."

"7. Do we share your personal data with third parties?"

...However, certain personal data that has been provided to TUCYCLE may be transferred to third parties, to enable, facilitate, and improve our services...

The user's personal data may be transferred to the following recipients:

Entities of the TUCYCLE Group or that may become members of the Group in the future (understood as a group of companies in accordance with the provisions of Article 42 of the Commercial Code), or to any third party that acquires all or a substantial part of the assets of TUCYCLE for the purposes of managing and administering the Group primarily.

Public Administrations, Courts, and Tribunals...

Providers that provide services to TUCYCLE...

Payment entities...

Traffic authorities..."

A copy of the data processing contract between REBY (data processor) and TUCYCLE (data controller) dated 18/02/2020 is provided. This contract stipulates that the data processor will carry out

the following services, among others: the provision of the platform and App service to the controller.

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of the treatment and maintenance services of the Platform and the App.

c) On 03/05/2022, the response prepared by TUCYCLE to a second request for information made by the Inspection Services was received by the AEPD:

. It confirms that the consent type “consent-from-co-app” refers to the consent for the transfer of data between mobility operators, “the same type of consent for the importation of user data,” prior to the change made on 16/08/2021. According to TUCYCLE, the purpose of that consent was “to authorize TUCYCLE to check if the user was already registered with any of the other collaborating mobility operators. If the user was already registered with another mobility operator, their data would be imported to facilitate the registration process.”

It also confirms that the mobility operators among whom the data was shared are TUCYCLE itself, REBY, OIZ, IBERSCOT, and AVANT; that the personal data of users shared included name, surname, mobile phone, email, ID card or passport, driver's license, and payment token; and that this sharing took place from 04/08/2020 to 16/08/2021.

In this regard, it states that “when starting the registration process through the application of any collaborating mobility operator, users were asked if they agreed to allow the operator to check if the user was already registered with any other mobility aggregation service operator. If the user accepted this check, and they were already registered, their data would be imported solely to expedite their registration process.”

TUCYCLE reports that a total of 944 users initially registered in its application and, subsequently, “whenever the user gave their consent,” their data was imported by other operators.

It provides screenshots of the registration process in the old version of the app corresponding to the mentioned consent. In the first of the screens, there are two checkboxes with the following texts:

“() Process my data for the provision of the contracted service according to the terms and conditions and privacy policy that I have read and accept”

() I consent to Tucycle checking if I am already registered on other collaborative mobility platforms to facilitate the registration process.”

And a “Continue” button at the bottom of the screen.

In the second screen, it states:

“After checking, we have detected that you are already registered with [include name of the Operator]. You agree that this operator communicates the following data to Tucycle to expedite the registration process, in order to provide you with our services: name,

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last names, email, ID card/Driver's license/Passport, payment token.

We remind you that you can exercise your rights as described in our Privacy Policy.”

At the bottom of the screen, the user is offered the options “Re-register” and “Understood!”.

It provides a list of all consent types “consent-from-co-app” where there are 5079 records, within a date range for the field “consent_timestamp” between 30/06/2020 and 22/03/2022.

The Inspection Services requested TUCYCLE to detail, from a technical point of view, the system through which the data was shared, indicating whether this sharing was done through shared access to the database of the data processor (REBY) by all mobility operators or otherwise. For the first case, that is, if shared access is made to the REBY database, the details of the measures implemented to prevent an operator from accessing the data of a user registered with TUCYCLE when that user did not consent to it were requested. In response to this question, the aforementioned entity reported as

follows:

(...).

(...).

User data was never shared (in the strict sense) between mobility operators, that is, before the change on August 16, 2021, there was a single user profile to which access was granted to the operators or not, depending on the consents granted by the user.

For example, in the case of registering a new user, it would work as follows:

- A user who does not exist in the system proceeds to register through the TUCYCLE application.
- Consent is requested to verify if they are already registered with another mobility operator to facilitate the registration process.
- The user is created in the system and, as they were not registered with any other operator, at this point the user is only visible to TUCYCLE and Reby.
- After a few days, this user registers in the application of another operator and consents to have their registration data imported.
- After this consent, the second operator gains access to this user's information. At this point, the user will be visible to both operators and Reby.

Therefore, in the database to which TUCYCLE had access before the change made on August 16, 2021, it could only be checked whether the user had authorized TUCYCLE to access their profile and whether this access had been granted from TUCYCLE or, if it had been granted from the Reby application in case they wanted to use a vehicle owned by TUCYCLE in the aggregation service."

EIGHTH: By resolution dated 13/10/2022, the expiration of the prior investigation proceedings mentioned in Seventh Background was declared, due to the passage of twelve months counted from the admission of the complaint without an agreement to initiate sanctioning proceedings having been issued.

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In the same resolution, it was also agreed to open new investigation proceedings and incorporate into these new proceedings the documentation that integrates the prior proceedings that are declared expired.

NINTH: In the new prior investigation proceedings agreed upon, the following verifications are carried out:

- On 27/02/2023, it was verified that the TUCYCLE App does not allow the registration of new users.
- Due to the aforementioned complaints, prior investigation proceedings were also carried out against the entity REBY, within the framework of which an inspection was conducted at the entity's premises in Barcelona on 07 and 08/03/2023. During this inspection, the representatives of the aforementioned entity made the following statements, which are recorded in the respective Inspection Act, which was signed by all participants:

"2.1.

They provide all the technological platform, including the development of the mobile APP and the associated database, to the operators Eco-Lógica Turismo Sostenible, S.L. (hereinafter IBERSCOT), Oiz Ridesharing, S.L. (hereinafter OIZ), Tucycle Bikesharing, S.L. (hereinafter TUCYCLE), and Avant Fullstep, S.L. (hereinafter AVANT) who provide a mobility service in the city of Barcelona.

(...).

2.2.

Regarding whether the operators IBERSCOT, OIZ, TUCYCLE, AVANT continue to provide service, they state that they no longer provide service since February 16, 2023.

2.3.

(...).

2.4.

Currently, REBY has completely ceased its activity.

2.5.

In relation to the contracts for the service of the technological platform and APP, including the aggregation service, provided by REBY to the operators, they provide said contracts...

2.6.

They are not aware that the operators may have collaboration contracts among themselves in the context of the service provided by REBY.

2.7.

There is only one data processing contract by REBY, which has already been provided to the Agency previously.

Regarding the access of the operators to the database and associated query tools, they state:

2.8.

REBY only provided each operator with reports containing aggregated or statistical data on the usage of the fleet of the respective operator. They cannot provide any request from the operators regarding those reports.

2.9.

(...).

2.10.

The respective operators did have direct access to the database query tools called (...). However, through these tools, they only had access to their own users.

2.11.

(...).

(...)

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Regarding data sharing among all operators:

2.14. That all tables in the database are common to all operators.

2.15. That the person accessing the data in REBY as a service provider to the operators is the same person accessing it on behalf of REBY providing services as an independent operator.

2.16. That prior to August 2021, there was only 1 record in the database for each user. All operators accessed this single record, but only once the user had given permission in the APP of each operator.

2.17. That after August 2021, there was 1 record in the database for each user and for each operator in which they were registered. During the migration, the unique records per user that existed previously had to be forcibly replicated as many times as there were operators in which the user had registered.

2.18. That, in theory, and from the perspective of access permissions to the database, all APPs of all operators including REBY could access the complete database both before and after August 2021.

Regarding consent for user data sharing among operators:

2.19. That prior to August 2021, a user was not allowed to register if they did not give consent to check if their phone number had already been registered with any operator and, if so, to import their data to the operator they were registering with. The reason is that there was only one unique record per user in the database that all operators needed to access. A user is exclusively determined by the phone number with which they registered. The software could not define different users associated with the same phone number.

2.20. That regarding the first screen of the operators' App where it states: "I consent that [OPERATOR] checks if I am already registered on other collaborative mobility platforms to facilitate the registration process." That checkbox had to be marked forcibly to continue with the registration process.

2.21. That regarding the second screen of the operators' App where it states "After checking, we have detected that you are already registered with [include name of Operator]. You agree that this operator communicates to... [OPERATOR] the following data to expedite the registration process, in order to provide you with our services: name, surname, email, ID/Driver's license/Passport, payment token. We

remind you that you can exercise your rights as described in our Privacy Policy.” And there are two options; one with the text “Register again” and another with “Understood!”. That by clicking on “Understood”, consent was indeed registered. If “Register again” was clicked, it returned to the initial screen where the phone number is entered to receive an SMS.

2.22. That they do not remember how the process was for the case of the REBY App.

2.23. That prior to August 2021, therefore, the five operators automatically shared all data of registered users, if they had previously given consent to import their data, as there was 1.

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unique record in the database.

2.24. That prior to August 2021, the "importation" of data from other operators was not such, but rather it was truly allowing access to the unique record of that user existing in the database.

2.25. That, prior to August 2021, REBY also accessed the unique record of a user just as the other operators did. They are unaware of where the user's consents for this access by REBY are located.

2.26. That, before August 2021, the apps of all operators, including REBY, functioned the same way, as they recall, that is, if a user wanted to register and was already registered with another operator, they always requested consent.

2.27. That before August 2021, when a user made use of the aggregation service, REBY did not transfer data of that user to the operator from which they wanted to drive the vehicle, assuming that the user was already registered with that operator. And that, in this case, REBY did not collect new consent. They cannot provide a screenshot of the REBY app with the user's interaction in this use case due to technical impossibility.

2.28. That, after August 2021, the option for "importation" of user data when a user was registered with another operator was no longer available, so the user had to complete the entire registration process. That no operator requested consent from the user during their registration process, only REBY to provide the aggregation service. That where there are dates of consent after August 2021, it is because it actually refers to consents given from the REBY app for the use of the aggregation service.

2.29. That the only table they are aware of that stores consents is called (...). That the field descriptions of this table are:

id: unique identifier of the consent

timestamp: date of the consent and date on which the record is created.

origin_company_user_id: user who gives the consent (equivalent to their phone number)

destination_company_id: company to which consent is given to access the data.

type: they do not know its meaning and it always has the value 1.

2.30. That they do not know where the consents given from the REBY app are located.

(...).

During the indicated inspection, the services of the AEPD accessed the database that supports the mobility service provided by REBY as an operator, the mobility aggregation service that REBY provides, as well as the technological platform and mobile app with which the other operators operate. Through this access, it was verified:

1. That the total number of users is:

REBY

1,034,859

IBERSCOT

13,023

OIZ

14,657

TUCYCLE

10,604

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AVANT
15,557

2. That the data associated with a user registered after August 2021 with the various operators, excluding REBY, may vary, including the payment token and the balance.

3. That there are consents in the consent table (...) for the operators TUCYCLE, AVANT, OIZ, IBERSCOT. It is verified that there are no records associated with REBY.

4. That the oldest consent date is 29/05/2020 08:44.

5. It is verified that:

a. For the operator AVANT, the first consent is dated 29/05/2020 and the last is dated 14/02/2023.

b. That the oldest consent given from IBERSCOT is dated 30/06/2020 and the most recent is dated 12/02/2023.

c. That the oldest consent given from OIZ is dated 30/06/2020 and the most recent is dated 12/02/2023.

d. That the oldest consent given from TUCYCLE is dated 30/06/2020 and the most recent is dated 13/02/2023.

6. That the way to know which operators a given operator has shared the data with, or even if they have shared it or not, is through the following procedure:

For a specific user, it is necessary to search in the session table for the first sessions of that user for each operator, that is, when was the first time that user used the app of each operator. If the first session of all is from the operator in question, it is inferred that they must have "shared" the data with the rest of the operators whose first session for that user is later. It is verified that the date of the first session in an operator coincides with the date of the consent given from that operator.

In the corresponding preliminary investigation report, the Inspection Services of the AEPD conclude the following:

"3. It is verified that currently neither the REBY App nor the TUCYCLE App allow the registration of new users. REBY states that it has completely ceased its activity and is in a pre-insolvency situation. The current situation of TUCYCLE in this regard could not be verified, as it was not requested.

4. In relation to data sharing between operators and consent, REBY states that:

a. Prior to August 2021, there was only a single record for each user, which was accessible to all operators. Therefore, all data associated with the user, including but not limited to name, surname, mobile phone, email, ID or passport, driver's license, payment token, balance, was shared completely and at all times among all operators.

b. Prior to August 2021, the consent given by the user was not for importing data since nothing was imported; it was to access the unique record of the user.

c. That, prior to August 2021, a user was not allowed to register unless they gave consent to check if their phone number had already been registered with any operator and, if so, to "import" their data to the operator with which they were registering. Since TUCYCLE reports that they cannot access the old versions of their App for technical reasons, it could not be verified whether, to complete the registration in the App, it was a requirement for the user to grant consent for data matching.

d. The sharing of data between operators began, as stated, on 04/08/2020; however, it is verified that the oldest consent is dated

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30/06/2020. It is also stated that data sharing existed until August 16, 2021.

It has been confirmed that, on a date after August 2021, the TUCYCLE app no longer collected consents...

8. There are deficiencies in the information provided to users in the privacy policy:

a. On August 1, 2020, users were not informed about data sharing with other operators nor who they were. It is noted that on January 19, 2021, they did provide this information.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Possible infringements

On November 6, 2020, a complaint was received by this Agency directed against the entities TUCYCLE, AVANT, OIZ, and IBERSCOT for the transfer of personal data of users who register in the corresponding mobile "apps" to access the vehicle rental service. This complaint warns that when a person registers in one of the "apps" of these entities and subsequently installs another one, the second recognizes the user and reuses the data provided by the other "collaborating platform," with the aim of "streamlining the process."

The same complaint highlighted that none of these entities informed the user that their personal data was shared with third companies, which were shared among the mentioned entities.

This complaint led to the actions indicated with the number E/10004/2020, in which, by resolution dated February 25, 2021, it was agreed to archive the respective complaint as the initiation of a sanctioning procedure was not warranted since the complaint had been addressed.

The archiving of actions was agreed upon after following the procedures regulated in Article 65.4 of the LOPDGDD, provided to evaluate whether or not to admit the complaint for processing. This article states the following:

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"4. Before deciding on the admission of the claim for processing, the Spanish Agency for Data Protection may refer it to the data protection officer designated by the data controller or processor, if applicable, or to the supervisory body established for the application of codes of conduct for the purposes provided in Articles 37 and 38.2 of this organic law.

The Spanish Agency for Data Protection may also refer the claim to the data controller or processor when no data protection officer has been designated nor is adhered to extrajudicial conflict resolution mechanisms, in which case the data controller or processor must respond to the claim within one month."

In turn, Article 37 of the LOPDGDD cited in the previous provision establishes:

"Article 37. Intervention of the data protection officer in the event of a claim before the data protection authorities.

1. When the data controller or processor has designated a data protection officer, the affected party may, prior to submitting a claim against them before the Spanish Agency for Data Protection or, where applicable, before the regional data protection authorities, address the data protection officer of the entity against which the claim is made.

In this case, the data protection officer shall communicate to the affected party the decision that has been adopted within a maximum period of two months from the receipt of the claim.

2. When the affected party submits a claim to the Spanish Agency for Data Protection or, where applicable, to the regional data protection authorities, they may refer the claim to the data protection officer so that he or she responds within one month.

If, after this period, the data protection officer has not communicated to the competent data protection authority the response given to the claim, that authority shall continue the procedure in accordance with the provisions of Title VIII of this organic law and its implementing regulations.

3. The procedure before the Spanish Agency for Data Protection shall be that established in Title VIII of this organic law and its implementing regulations. Likewise, the autonomous communities shall regulate the corresponding procedure before their regional data protection authorities.”

According to the above, the indicated mechanism prior to the admission of claims submitted to the Spanish Agency for Data Protection consists of forwarding them to the Data Protection Officers designated by the data controllers or processors, or to them when they have not designated any, so that they proceed to analyze the claims and respond within one month.

Thus, when the actions carried out in view of the claim address the issues raised by the claiming party and the responsible entity adopts the necessary measures to align its actions with the requirements set forth in the data protection regulations, the AEPD may decide not to continue the procedure following the admission of the claim, established in Title VIII of the LOPDGDD, which contemplates the possibility of carrying out preliminary actions and initiating a sanctioning procedure, if applicable.

This occurred in the aforementioned precedent (E/10004/2020), in which the filing was agreed.

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of the complaint, considering the response given by the entity TUCYCLE.

As stated in the aforementioned resolution of case closure, dated 25/02/2021, in its response to the transfer procedure, dated 21/01/2021, TUCYCLE informed that it had made modifications to its privacy policies to inform about the transfer of user data to third-party collaborating companies with which it shares a platform.

Likewise, it informed that it was in the process of incorporating a mechanism in the user registration process in its mobile application to collect their consent for obtaining their data from other collaborative mobility platforms, with the purpose of facilitating the registration process.

Once the reasons presented were analyzed, it was considered that the initiation of a sanctioning procedure was not warranted, as the processing of the complaint in accordance with the provisions of Article 65.4 of the LOPDGDD led to the resolution of the issues raised, without the need to ascertain administrative responsibilities within the framework of a sanctioning procedure. This is without prejudice to the Agency, applying the investigative and corrective powers it holds, being able to carry out subsequent actions related to the data processing referred to in the complaint.

Shortly after the resolution that concluded the previous proceedings was issued, on 12/03/2023, this Agency received a letter from the City Council of Barcelona in which a technical report, dated 29/01/2021, from the Mobility and Infrastructure Management is provided. This letter informs of the same factual circumstances already analyzed in the aforementioned precedent, regarding the communication of user data between the different companies providing bikesharing services, for not informing their users of such communications and for not obtaining their consent. A fifth company, REBY, is also reported for sharing the databases of the records and users without their prior consent. Furthermore, the facts that motivated the letter from the City Council of Barcelona occurred in a time period prior to the issuance of the resolution closing case number E/10004/2020. Specifically, the verifications were carried out on the following dates: 10/08/2020, 26/10/2020, and 01/12/2020.

Subsequently, a complaint was received in this Agency filed by (...) on 26/05/2021 against the same entities, in which the same factual circumstances already analyzed in the aforementioned precedent are highlighted, regarding the communication of user data between the different companies providing

bikesharing services, for not informing their users of such communications and for not obtaining their consent. However, in the same complaint, it is noted that TUCYCLE had modified its privacy policy to include information regarding the recipients of the communications of the personal data in question. In both cases, it was deemed appropriate to admit the letter from the City Council of Barcelona and the complaint for processing in order to carry out the necessary verifications regarding the information received from TUCYCLE.

Thus, it was agreed to open preliminary investigation proceedings to verify if

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The measures reported by TUCYCLE in that precedent were implemented effectively and appropriately.

These actions have allowed us to ascertain that the entities involved shared users' personal data from the beginning of their activity in the city of Barcelona in the summer of 2020, without the consent of the affected individuals and without properly informing them about such personal data processing, which was indeed foreseen in their Record of Processing Activities.

The entity REBY, which provided the necessary technological platform for the service to users, has acknowledged that there was only one record per user in the database, associated with their phone number, which was accessible to all operators. This entity stated that access was only granted when the user had consented, but also clarified that a user was not allowed to register unless they provided consent to check if their phone number was already registered with another operator and, if so, for the operator they were registering with to access the only existing record of that user in the database; and that this was due to the software not allowing the definition of different users associated with the same phone number.

Regarding the information provided to users, the Inspection Services verified that initially users were not informed about this "data sharing," although the versions of TUCYCLE's Privacy Policy dated 01/19 and 05/19/2021 included details of the recipients of the information. The first of these versions predates the resolution of dismissal issued in file E/10004/2020 and the complaint from the Barcelona City Council, and the second is simultaneous to the filing of the complaint by (...).

Notwithstanding the above, it is recorded in the proceedings that TUCYCLE informed the Inspection Services that, following the requests from the AEPD and the modifications made to simplify procedures, as of 08/16/2021, they ceased to check if a user was registered with any of the other collaborating mobility entities and stopped the data communications, with no evidence to the contrary. On the other hand, the Inspection Services verified that, on a date after August 2021, the TUCYCLE mobile app no longer collected consents, that during the user registration process consent for data communication to third parties was not required, but only for the data processing necessary for the provision of the service; that their Privacy Policy contained no reference to data sharing with other collaborating mobility companies; and that in their Record of Processing Activities, in the version from August 2021, the entry regarding data communication to "third mobility companies providing their services jointly" disappeared.

It can therefore be concluded that with the indicated measures, TUCYCLE carried out the regulatory adjustment required by this Agency.

In accordance with the above, this Agency deems it appropriate to agree to archive the complaint that has led to these proceedings, in relation to the entity TUCYCLE.

It is also taken into account, (i) that the reported data sharing had ended at the time the present complaint was admitted for processing; and (ii) that TUCYCLE has not provided service since 02/16/2023, having verified that currently the TUCYCLE App does not allow the registration of new users.

Therefore, the archiving of the proceedings is appropriate, without prejudice to the Agency, exercising its investigative and corrective powers, being able to carry out subsequent actions related to the data processing referred to in the complaint.

Thus, in accordance with the aforementioned, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to (...), the CITY COUNCIL OF BARCELONA, and TUCYCLE BIKESHARING, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

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